

Final recommendation: all recommendations for the 30 September send

WC/2024/227 Shepherd v Workers' Compensation Regulator · Prepared 25 September 2026 (AEST), revised for the 30 September send for Cory Shepherd · Forecast and procedure reading only, not legal advice · All documents are unsent drafts · Revised 25 September 2026, 2:50 pm AEST

1. Recommendation

Send the Registry letter, the conference paper, the request letter and the separate retraction-chain request (section 7) together on the **evening of Wednesday 30 September 2026, after 4:00 pm**, once the fifteen fixes in section 4 are made and your inbox shows nothing new from the Regulator. Put one return date, **Thursday 15 October 2026**, on both the section 7 response schedule and the request letter. That gives the Regulator 15 days.

Sending on the evening of 30 September meets direction 5 of FDO (3) of 19 August 2026 with a day in hand, in case a Registry email bounces or is delayed. It also means the Regulator's window for its outlines and any medical or expert evidence (4:00 pm, 30 September) has closed, so the statement that the Respondent has served no medical or expert evidence is true for the whole window.

2. How it sits against the orders

Direction 5 requires you to progress the matter through the Registry. The letter does that a day before the 1 October deadline. It records that both sides' witness lists and outlines have been served, asks for a second s 552A conference on four defined matters, and says you are ready for a hearing and will abide by whatever course the Commission takes. That is a balanced request and does not overreach. The conference sought is about narrowing issues (the last documents, facts 228 to 231, the medical witnesses, and the management action relied on at SOFC [27]). It is not a conference to reargue Tab 20.

3. How it meets the Regulator and the position it puts them in

Every one of the 15 questions is built on a fact the Regulator has already admitted, with the fact numbers given. The strongest single point is fact 303, where the Regulator admits that SOFC [27] does not identify the management action it says was reasonable. The section 6 table asks it to name that action, row by row, and say whether it was reasonable.

For each row the Regulator has two choices. It can say the point is "not maintained", which narrows the case to the law and the medical evidence. Or it can keep defending against its own admissions, its own Review Unit's finding that the rostering was unreasonable management action (fact 260), the Chief Executive's letter (Tab 20, now confirmed authentic) and payroll's own emails. Either way the answer is on paper, in front of the Commission, before any hearing.

Section 8 invites the Regulator to reconsider its position on the admitted record. That fits its own July wording ("Should our position change at any point, we will advise you as soon as possible") without referring to the without-prejudice offer. Keep it that way. The paper is an open document, so no settlement or costs material should go into it. Any fresh without-prejudice offer should be a separate letter.

4. Changes to make before sending

#	Where	Change
1	Paper, Q2	The cross-reference "Sections 4.1 to 4.3" should read "Sections 3.1 to 3.3".
2	Letter (paragraph 2, Part A heading, closing line) and paper ("Tab 6, confirmed...")	Change "23 September 2026" to 24 September 2026 in all four places. Matheson's email was sent at 09:51 AEST on 24 September; the 23rd came from a forwarded copy printed in UTC.
3	Paper, Q8 and section 3.8	Q8 cites fact 163 for the 15 April 2024 email; section 3.8 cites fact 50. Make them consistent.
4	Paper, section 3.9	Add the date to the "5:03 pm text" row.
5	Letter and paper	"The directions are complete" and "no medical or expert evidence" are premature before 4:00 pm on 30 September. Sending after 4:00 pm on 30 September fixes this. Check your inbox first for anything the Regulator served that day.
6	Paper, section 3.8, and request letter	Both 15 May 2024 times are right. Ms Reese's outline says she emailed at 4:12 pm without her signature and again in the same terms at 6:23 pm. Name both emails consistently. Do not adopt the outlines' words "declined" (Reese) or "refused" (Taylor). Your 7:09 pm reply (Tab 9A, admitted, fact 78) contains no refusal. Frame Q9 on the admitted text only. Your account, that you recalled the email after Ms Reese's request and that by then it had already been removed from the Switchboard inbox, is not yet in any document in evidence. The separate request letter (section 8) asks for the records that would show it. Keep it out of the paper until those records arrive.
7	Paper, section 7	Add a return date for the response schedule: 15 October 2026 , the same as the request letter. Without a date, the Regulator's history suggests a late or oral answer.
8	Letter, new item (e)	Add documents the Regulator's witnesses rely on that are not on its List of Documents (Earl's April 2026 return, the Technical Support advice, page 1 of the 2020 agreement). Send the request letter the same day.
9	Paper, section 5.2	Add a sentence saying the address, drive time and roadworks are your material, offered for context only and not part of the admitted record.
10	Letter item 3(a) and paper section 2 row A	Split Tab 24 from the Metro South Health documents. Nine documents close when MSH provides copies; Tab 24 (the Together Queensland email of 3 November 2025) closes by agreement or through Ms Conaghan, as your own Part B schedule says.
12	Letter heading and schedule, paper, request letter	Re-date everything to 30 September 2026 : "Dated 25 September 2026" on the letter, "the letter of 25 September 2026" in its schedule, and "Provided to the Respondent on 25 September 2026" on the paper. Give the request letter the same date. That keeps "I have today provided the Respondent with a paper" accurate.
13	Paper, opening of section 3	Delete the sentence beginning "None of the outlines addresses the Appellant's database and emergency response duties...". It tells the Regulator where its outlines are silent and could prompt a supplementary outline. Keep those gaps in a private note for cross-examination and submissions.
14	Paper section 1, and letter paragraph 3	Replace "no medical or expert evidence" / "has served no medical or expert evidence" with "no medical or expert evidence was served within the time directed". Re-check after 4:00 pm on 30 September before sending.
11	Paper, Q12	Keep Q12 to two points: page 1 of the 2020 agreement was never disclosed, and the Regulator treats the agreement as running with no end date. Do not add the Part C termination clause. It would invite a "he knew he could end it" answer and weaken admitted fact 22.
15	Request letter, item (e)	If the separate letter in section 8 is not sent, add one neutral line to item (e): "the Human Resources advice referred to in Ms Taylor's outline concerning the removal of the Appellant's email of 15 May 2024 at 1:15

		pm (fact 74) from the shared Switchboard inbox, and any record of when it was removed.” Give no reason. If the section 8 letter is sent, leave this out of item (e) so it is not asked twice.
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5. Keep as it is

Keep section 6 and Q15 (asking the Regulator to name the management action relied on at SOFC [27]), framed only on the admitted facts. Its answer is the one reply that can be scored before the hearing. Keep the questioning, non-accusatory tone, the Tab 31 codes marked as not admitted, the medical witnesses limited to whether they are needed for cross-examination, and the statement that you are ready for a hearing.

6. What to expect from the Regulator (forecast estimates)

Scenario	Likelihood	What it looks like
Base	about 50%	A written schedule near 15 October that concedes the easy rows (medical witnesses not needed, agreed tender list once MSH provides copies) and keeps defending SOFC [27] and s 32(5). This is the narrow-defence path.
Slow	about 30%	No written schedule before the conference; answers given orally or left to the Commission. This would be about 50% without a return date.
Fast	about 20%	Several rows marked "not maintained", or a separate without-prejudice letter. This would be the first real signal toward settlement.

The settlement or concession path stays at about 32% until the Regulator replies. If three or more rows are marked not maintained, especially the row asking it to name the SOFC [27] action, that would rise to the mid-40s. If every row is maintained, the narrow-defence path rises to the mid-50s. After a full read of the Regulator's outlines, which name no management action and no reason for it, the estimate that the Regulator loses if the matter goes to hearing rises to about 60 to 65%. The chance it seeks leave for a supplementary outline between 30 September and 15 October is about one in four once fix 13 is made.

7. Separate request: the retraction chain, the recall and the removal

A standalone letter to Ms Matheson, dated 25 September 2026, is drafted as a separate document (*Request_to_Regulator_retraction_chain_recall_removal_2026-09-25.pdf*). It asks for four things, each with its date: (a) the complete “Office Hours and Departmental Directives” chain from 15 to 31 May 2024, including every reply and every forward to Ms Taylor or LBH_HR; (b) the message-recall record for your 1:15 pm email, including the recall result reports; (c) any record of when, and by which account, that email was removed from the shared Switchboard inbox; and (d) the Human Resources advice that Ms Reese and Ms Taylor say they acted on.

It rests on three things already on the record. At the mention on 7 August 2026 the Commissioner said the starting point for a document Metro South Health holds is to ask the Regulator first. The Regulator's own Form 24 response (paragraph 21) says the emails “need to be read as a whole”. And the HR advice is relied on in the Regulator's own outlines of 24 September. The letter gives no reason for asking and makes no claim about what the records will show.

Timing. I recommend holding it and sending it with the 30 September package, re-dated 30 September. The Regulator can still serve outlines without leave until 4:00 pm on 30 September. A request about when the email was removed, received before then, could prompt a

supplementary outline from Ms Taylor or Ms Reese fixing that time. If you send it today instead, the return date of 15 October still works, but you accept that risk.

Trade-off. The records could support your account: a recall after 6:23 pm, and removal from the inbox before your recall or before your 7:09 pm reply. They could also show no recall, or a later removal, and once produced they are evidence either side can use. The earlier caution about your health.qld.gov.au Sent folder still applies, because item (a) will bring in anything you sent Ms Reese after 21 May. Microsoft 365 audit logs are usually kept for 90 to 180 days, so item (c) may come back as not held. A “not held” answer is still useful.

If nothing arrives by 15 October. Raise it at the s 552A conference. A narrow notice of non-party disclosure to Metro South Health, limited to items (b) and (c) and tied to the 24 September outlines, is the fallback. Do not serve a new Form 29 now. You withdrew the last one on 28 August, and the Commissioner has warned against disclosure sideshows. An Information Privacy Act application to Metro South Health for your own emails is a parallel route, but lodged on 28 September it would take until about 2 November.

Private note for cross-examination (not for any document). The times on 15 May 2024 are 1:15 pm (your email), 4:12 pm and 6:23 pm (Ms Reese's requests; the second copied to Ms Taylor, fact 76) and 7:09 pm (your reply to Ms Reese alone, fact 78). A removal before 7:09 pm means “told he had refused” cannot have been the reason for it. Who told Ms Taylor you had refused, and when, is the question to ask her. The date you first learned of the removal needs a dated record (the health account, a text or a colleague). Your Hotmail has nothing on it before November 2024.

8. Timeline

Date	Step
25 Sep	Separate request letter drafted (section 7). Recommended: hold for the 30 September send.
25 to 30 Sep	Make the fifteen fixes; check the health.qld.gov.au Sent folder and the Tab 9A header.
30 Sep, 4:00 pm	Regulator's window for outlines and medical or expert evidence closes.
30 Sep, about 4:15 pm	Inbox check for anything from the Regulator, OIR, the Registry or MSH since 25 September.
30 Sep, evening	Send the Registry letter (copied to the Respondent), the conference paper, the request letter and the separate retraction-chain request together, all dated 30 September.
1 Oct	Direction 5 deadline (already met). Confirm the Registry has received the letter.
15 Oct	Shared return date for the response schedule and both request letters.
After 15 Oct	Decide whether to serve the held third notice, and whether to raise items (b) and (c) of the separate request at the conference, based on what has arrived.

Prepared from the room's review (Email, Outlook Miner, Timeline Desk, Latency Lab, Forecast Desk, Synthesis Lead). The probabilities are forecast estimates from the case record, not measured rates, and none of this is legal advice. Nothing has been sent.